

Inha University in Tashkent

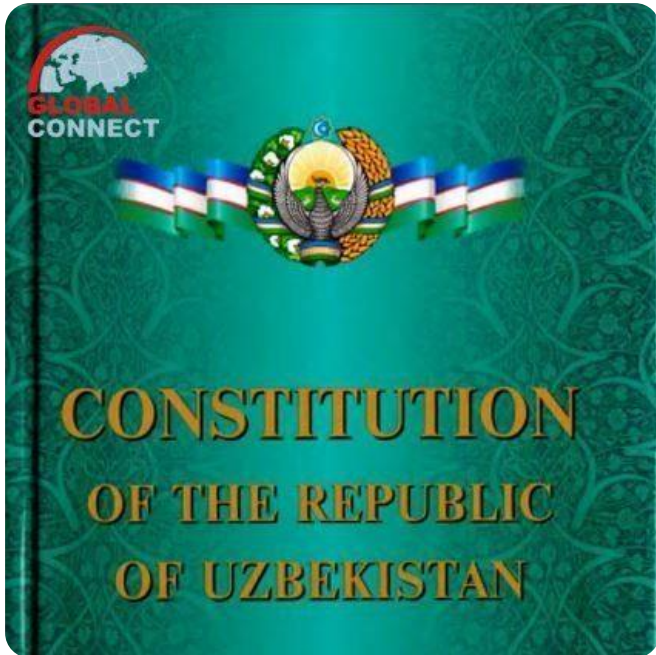
***Theme 3: The Constitutional Basis of Civil Rights and Duties.
Mechanism of Civil Rights Protection***

Tashkent – 2024



Outline:

- Personal rights and freedoms
- Political rights
- Economic and social rights
- The constitutional duties of citizens of Uzbekistan



The Constitution on the Human Rights

- The Constitution of Uzbekistan aims to establish legally a free civil society and to form a democratic state in Uzbekistan.
- The glorification, protection and perfection of the human being have become the main idea of our Basic Law.
- One of the largest parts of the Constitution of Uzbekistan is the Part II, entitled “Fundamental Rights, Freedoms and Duties of Individuals and Citizens.”
- The legislation of Uzbekistan, which is a full member of the international community, and the first Constitution of the independent Republic of Uzbekistan, are developed in accordance with the requirements of international law.

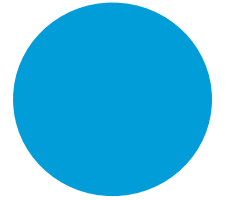
International Law and Human Rights

- **International laws on human rights:**

- ❑ *the Universal Declaration of Human Rights (the third session on December 10, 1948);*
- ❑ *the International Covenant on Economic, Social and Cultural Rights (on December 16, 1966);*
- ❑ *the International Covenant on Civil and Political Rights (on December 19, 1966).*

- **The human rights of citizens can be divided into three main types according to the Constitution of Uzbekistan:**

- 1) Personal rights and freedoms (Chapter 7, Articles 25-35)
- 2) Political rights (Chapter 8, Articles 36-40)
- 3) Economic and social rights (Chapter 9, Articles 41-53)





Personal rights and freedoms

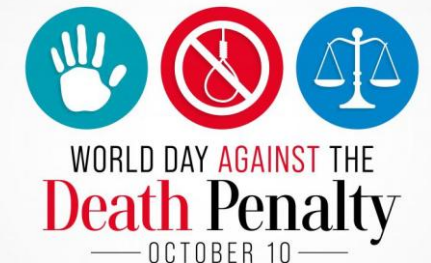
- Types of personal rights and freedoms:
 - the right to life;
 - inviolability of human honor and dignity;
 - the right to freedom and inviolability of the person;
 - the presumption of innocence (one is considered innocent unless proven guilty);
 - inviolability of home;
 - the right to receive qualified legal assistance;
 - no one may be convicted, punished, deprived of property or any right on the basis of a law that is not officially published;
 - the right to privacy of correspondence, telephone conversations, postal, electronic and other communications;
 - the right to freedom of movement;
 - freedom of thought, speech and convictions
 - access to documents, resolutions and other materials relating to citizens' rights and interests
 - freedom of conscience.



Features of personal rights and freedoms

- **Features:**

- ✓ Personal rights and freedoms do not depend on the state's citizenship;
- ✓ These rights of people are inviolable and each person will be born with them.
- The greatest and holiest of human rights is the right to life.
- In Uzbekistan, human rights are protected by various laws. These include, in particular, the Criminal Code of the Republic of Uzbekistan. The assassination of human life is considered to be the most serious offense, and severe penalties are imposed on it.
- On August 1, 2005, with the aim of implementing concrete measures to liberalize criminal penalties, proceeding from the universally recognized principles and norms of international law, the Constitution of the Republic of Uzbekistan, which promotes and strengthens the human right to life:
 - ✓ the Decree of the President of the Republic of Uzbekistan "On abolition of death penalty in the Republic of Uzbekistan" was issued.
 - ✓ In this decree, from January 1, 2008, the death penalty was abolished as a criminal offense, and a life imprisonment or long-term imprisonment was replaced. Thus, the right to life of people in any democratic states, as well, in Uzbekistan, is guaranteed as a natural and sacred right.



Political rights

- Following freedoms can be considered as political rights:
 - the right to participate in the management of public and state affairs;
 - the equal rights to access civil service;
 - the right to engage in public life by holding rallies, meetings and demonstrations;
 - the right to form trade unions, political parties and other public associations;
 - the right to submit applications and proposals, and to lodge complaints with competent state bodies and organizations, citizens' self-governing bodies, officials and public representatives.



Political rights

- On May 5, 1994, the Law of the Republic of Uzbekistan "On guarantees of citizens' suffrage" was adopted.
- According to it, the right to vote is exercised through the participation of citizens in:
 - referendums;
 - elections of the President of the Republic of Uzbekistan;
 - elections of representative bodies of power.
- The authorities determine the routes of rallies, meetings, and demonstrations, and control the start and ending time.
- In order to regulate the relationship, the Law of the Republic of Uzbekistan "On Citizens' Appeals" was adopted on May 11, 2002. It defines the basic rules defining the rights of citizens' appeals, as well as the timeframe and procedure for considering citizens' appeals.



Public Associations

- There are some public associations such as the Federation of Trade Unions of Uzbekistan, ‘Yuksalish’ Nationwide Movement (January 18, 2019) and political parties in the country.
- In 1990, the trade unions of the republic adopted the Declaration on the Establishment of the Federation of Trade Unions of Uzbekistan, the organizational design of which was completed in 1991 by the adoption of its Charter. Currently, the Federation of Trade Unions of Uzbekistan includes 14 branch trade unions, the Karakalpak Republican, Tashkent City, 12 regional associations of trade union organizations, with more than 6.1 million people in their ranks.
- The main goal of the ‘Yuksalish’ Nationwide Movement is to unite citizens, citizens living abroad, non-governmental organizations, the business community, academia around the ongoing reforms on a voluntary basis.



Political Parties in Uzbekistan

- There are currently five political parties in Uzbekistan:

The People's Democratic Party of Uzbekistan (PDPU) was established during the founding congress on November 1, 1991.

- 14 regional organizations - the Republic of Karakalpakstan, 12 regions and the city of Tashkent, as well as 25 city and 168 district organizations, including 11 district party organizations in Tashkent.
- the party has more than 430,291 members
- the principal party newspapers are "Uzbekiston Ovozi" published in Uzbek and the weekly "Golos Uzbekistana" in Russian
- Chairman of the Central Council is Ulugbek Inoyatov Ilyasovich

The purpose of the party is to protect the interests of the population in need of targeted social protection and social support by the state and society in the representative bodies of state power.



Adolat (Justice) Social Democratic Party of Uzbekistan



- ❑ *Adolat (Justice) Social Democratic Party of Uzbekistan* (Adolat SDPU) was founded on February 18, 1995, at the first Founding Congress of the party.
 - the party has 430,496 members, 46 percent of whom are women and 39 percent are young people. Today, there are 6,250 primary party organizations, 204 district (city) councils and 14 regional party councils.
 - the supreme body of the party is the Kurultay (Congress)
 - Plenums of the Political Council of the party are held no less than twice a year.
 - the political newspaper “Adolat”, founded on February 22, 1995, is a primary publication of Adolat Social Democratic Party of Uzbekistan.
 - Chairman of the Central Council is Bahrom Abdurahimovich Abduhalimov
- ❑ **The key objective of Adolat Social Democratic Party is** to build a democratic state based on the rule of law and a strong just civil society based on a socially oriented market economy, as well as active participation in the development of a spiritually cohesive society that meets the common interests of all nations and peoples living in the territory of Uzbekistan, ensuring equality, solidarity, constitutional rights and freedoms of citizens before the law.

The Liberal Democratic Party of Uzbekistan

- The Founding Congress of the *Liberal Democratic Party of Uzbekistan* (the Movement of Entrepreneurs and Businessmen) took place on 15 November 2003
 - the Liberal Democratic Party of Uzbekistan, which unites more than 324 thousand members (as of 2016) in 10,282 primary organizations of the party
 - the highest governing body of the Liberal Democratic Party of Uzbekistan is the Congress, which is held at least once every five years.
 - the central publication of UzLiDeP is the socio-political newspaper “XXI ASR”.
 - Khaitov Aktam Ahmadovich is Chairman of the Executive Committee of the Political Council of the party

The main goals of the party are:

- together as a political force, it will create new opportunities for entrepreneurs, business people and farmers to operate more broadly, justify their prospects both theoretically and practically, protect the interests of this segment of society and ensure the future;
- to mobilize the Party's forces and capabilities to develop and implement a program that meets the national interests and strategic prospects of the country's development, based on the principles of the Constitution, in cooperation with other political parties and movements.



Milly Tiklanish (National Revival) Democratic Party of Uzbekistan



- *Milly Tiklanish (National Revival) Democratic Party of Uzbekistan* was created on June 20, 2008, by a decision of the Joint Congress on the basis of confluence of Milly Tiklanish Democratic Party of Uzbekistan and Fidokorlar National Democratic Party
 - 14 regional (Republic of Karakalpakstan, regions and the city of Tashkent), 27 cities, "Yoshlik" campus council and 174 district councils. As of January 1, 2020, the number of party members is 275,576, and the number of primary party organizations is 6,510.
 - the supreme body of the party is the Congress that convenes no less than once in five years.
 - the party publication is the socio-political newspaper "Milly Tiklanish".
 - Chairman of the Central Council is Alisher Keldiyevich Qodirov.
- **The main goals of the party are:**
 - ensuring sustainable national development, protection and promotion of national interests, preservation and enrichment of spiritual values, customs and traditions, rich historical heritage, contribution to the development of tourism in our country;
 - creating favorable conditions for the formation of and strengthening the sense of national identity, national pride, devotion and love for the Motherland among the citizens of the Republic of Uzbekistan;

The Ecological Party of Uzbekistan

- On January 24, 2019, the Ministry of Justice of Uzbekistan registered the Ecological Party of Uzbekistan.
 - On February 1, 2021, a congress of the Ecological Party of Uzbekistan was held in Tashkent and Narzullo Naimovich Oblomuradov was elected as the chairman of the executive committee of the Central Council of the Ecological Party of Uzbekistan.
- more than 247,000 members;
 - the party has 14 regional and 201 district (city) and 1,021 primary party organizations.
- **The main goals of the party are:**
 1. Ensuring the implementation of state policies aimed at achieving sustainable development of the country, environmental security, creating a favorable environment for present and future generations and conservation of natural resources.
 2. Contribute to the protection of the environment and the conservation of natural resources, which is the responsibility of the state, society and every citizen of the country.



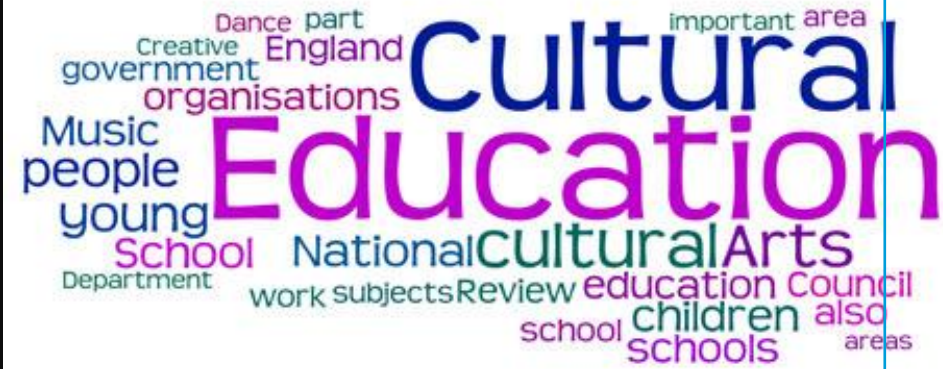
Economic and social rights

- Economic and social rights play an important role in the basic human and civil rights and freedoms. These are the most important aspects of human life, including:
 - ✓ the right to own property (41)
 - ✓ the right to work, fair conditions of labor and protection against unemployment (42)
 - ✓ the State shall take measures to ensure employment of citizens, to protect against unemployment and to reduce poverty (43)
 - ✓ any forced labor shall be prohibited, except as punishment under the court decision, or in some other instances specified by law (44),
 - ✓ the right to have paid rest (45)
 - ✓ the right to social security in old age (46)



Economic and social rights

- ✓ the right to housing (47)
- ✓ the right to health and qualified medical care (48)
- ✓ the right to a favorable environment, reliable information about its condition (49)
- ✓ the right to education (50)
- ✓ the right to receive higher education in state educational organizations on a competitive basis at the expense of the state (51)
- ✓ the work of a teacher shall be recognized as the basis for the development of society and the state (52)
- ✓ the freedom of research and engineering work, the right to enjoy cultural benefits (53).



Economic and social rights

- The right of ownership means the possession, use, and disposal of the property.
- National Programme for Personnel Training and Law on “Education” was adopted on August 29, 1997
- The types of education:
 - preschool education;
 - general secondary education;
 - secondary special, vocational education;
 - higher education;
 - postgraduate education;
 - retraining and retraining of personnel;
 - education that outside the school of education

Duties of Citizens

- The constitutional duties of citizens of Uzbekistan are as follows:
 - performance of duties (59)
 - to observe the Constitution and laws (60)
 - protect the historical, spiritual and cultural heritage (61)
 - to protect the environment (62)
 - to pay taxes and local fees (63)
 - defense of the Republic of Uzbekistan (64).



Thank you for your attention!